Data Classification Guidelines

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1.0. Purpose

The purpose of the Data Classification Guidelines is to establish common guidelines for data classification based on its sensitivity to ensure consistent practices across State of Hawaii agencies. Adherence to these guidelines enhances data security, ensures data privacy protection, and facilitates compliance with regulatory requirements throughout the State.

2.0. Authority

Hawaii Revised Statutes (HRS) section §27-44,[1] established within the Office of Enterprise Technology Services, Department of Accounting and General Services, under the authority of the Chief Information Officer, the Chief Data Officer to develop, implement, and manage statewide data policies, procedures, standards, and guidelines. HRS section 27-44 also established a Data Task Force to assist the Chief Data Officer in developing the State's data policies, procedures, and standards.

3.0 Scope

3.1. State Agencies

The Data Classification Guidelines apply to all State agencies.

The Data Classification Guidelines provide high level guidelines on data classification. Each agency shall develop additional policies and guidelines as necessary according to relevant federal and state laws and regulations, both at the data set level and at individual field level, to ensure compliance with its operations. When a conflict exists between the Data Classification Guidelines and an agency's policy, the more restrictive policy will take precedence.

[1] HRS § 27-44. https://www.capitol.hawaii.gov/hrscurrent/Vol01_Ch0001-0042F/HRS0027/HRS_0027-0044.htm.

3.2. Definitions

Data Classification refers to the assignment of a level of sensitivity to data that results in the specification of controls for each tier of classification. Tiers are assigned according to predefined categories as data are created, amended, enhanced, stored, or transmitted.[2]

3.3. Covered Use

The Data Classification Guidelines apply to all data sets handled by state agencies. This includes, but is not limited to systems in the cloud, on premises, and on local drives.

4.0. Information Statement

Data classification is conducted at the field or field value level, as required by relevant laws and regulations. This means that each piece of data is assessed and categorized based on its sensitivity. If a data set is fully open to the public, detailed classification may not be necessary.

Classifying data at a granular level is essential for responsible data management. It allows agencies to safeguard individual privacy while promoting transparency, thereby building public trust and advancing the State's open data initiatives.

Each agency is responsible for classifying its data into one of the recommended tiers as follows:

- **Public:** Public refers to data intended for unrestricted access and dissemination.
- **Controlled:** Controlled refers to data used for an agency only. It may be shared between agencies or organizations under the terms of a written memorandum of agreement or contract.
- **Protected:** Protected refers to data that, while not as sensitive as classified data, requires protection from unauthorized access or disclosure to prevent potential harm or loss.
- **Classified:** Classified refers to highly confidential data that requires restricted access and strong protection.

When sharing data between different agencies within the State, a data sharing agreement is required unless it is public data. Data must be protected according to the data handling requirements as specified in table 1 below.

[2] Information Systems Audit and Control Association (ISACA) Glossary. https://www.isaca.org/resources/glossary.

Table 1. Data Handling Requirements

Tiers	Sensitivity	Storage	Transmission	Access
Public	Insignificant	Standard storage	Standard transmission methods (e.g., HTTP)	Openly accessible
Controlled	Low	Access-controlled storage	Secure transmission methods	Authentication and authorization required
Protected	Moderate	Encrypted at rest and in transit	Secure methods (e.g., VPN, SFTP, TLS) with additional encryption layers	Role-based access control with granular permissions and multi-factor authentication
Classified	High	High-assurance security storage (e.g., hardware security modules)	Strongest secure methods (e.g., dedicated encrypted channels, zero-knowledge proofs)	Access limited to authorized personnel only

5.0 Compliance

The Data Classification Guidelines shall take effect upon publication. Compliance is strongly recommended.

6.0 Contact Information

Submit all inquiries and requests for future enhancements to the Chief Data Officer, Office of Enterprise Technology Services, Department of Accounting and General Services, at data@hawaii.gov.

7.0. Definitions of Key Terms

All terms shall have the meanings found in the Data & AI Glossary (under Glossaries at https://data.hawaii.gov/).

- **Data Asset**: Data Asset refers to any data entity that is comprised of data. For example, a database is a data asset that is comprised of data records. A data asset may be a system or

application output file, database, document, or web page.[3]

- **Sensitivity**: Sensitivity refers to the potential harm that could result from unauthorized access, disclosure, modification, or destruction of information.[4]
- **Transmission**: Transmission refers to the movement of information across a communication channel.[5]

8.0 Revision History

Date	Description of Change
July 22, 2024	Reviewed and approved by Data Task Force
August 27, 2025	Reviewed and approved by AG/OIMT
October 13, 2025	Revised
October 14, 2025	Reviewed and approved by AG/OIMT

9. Related Documents

[1] General Services Administration, Protecting PII - Privacy Act, U.S. https://www.gsa.gov/reference/gsa-privacy-program/rules-and-policies-protecting-pii-privacy-act.

[2] Office of Information Policy U.S. Department of Justice. Freedom of Information Act (FOIA), 5 U.S.C. § 552. https://www.justice.gov/oip/freedom-information-act-5-usc-552.

[3] National Institute of Standards and Technology (NIST) Special Publication 800-30 (Rev. 1): Risk Management Framework for Information Systems and Organizations. https://www.nist.gov/privacy-framework/nist-sp-800-30.

[4] Privacy Act of 1974, 5 U.S.C. 552a. https://www.govinfo.gov/content/pkg/USCODE-2018-title5/pdf/USCODE-2018-title5-partI-chap5-subchapII-sec552a.pdf.

[5] Children's Online Privacy Protection Act (COPPA) — PII of children under 13. https://uscode.house.gov/view.xhtml?req=granuleid%3AUSC-prelim-title15-section6501&edition=prelim.

[6] Payment Card Industry Data Security Standard (PCI DSS) v 3.2. https://www.pcisecuritystandards.org/document_library/?category=pcidss&document=pci_dss.

[7] Nacha Operating Rules. ACH payment. https://www.nacha.org/newrules.

[3] National Institute of Standards and Technology Glossary: https://csrc.nist.gov/glossary/term/data_asset
[4] National Institute of Standards and Technology Glossary: https://csrc.nist.gov/glossary/term/sensitive
[5] National Institute of Standards and Technology Glossary: https://csrc.nist.gov/glossary/term/transmission.

[8] Internal Revenue Service Tax Information Security Guidelines for Federal, State and Local Agencies. https://www.irs.gov/privacy-disclosure/safeguards-program.

[9] Health Insurance Portability and Accountability Act of 1996 (HIPAA). https://aspe.hhs.gov/reports/health-insurance-portability-accountability-act-1996.

[10] Privacy of Medicaid Data Records, the Code of Federal Regulations (at 45 CFR 95.621). https://www.hhs.gov/guidance/document/privacy-medicaid-data-records.

[11] Medicaid Information Technology Architecture (MITA) 3.0. https://www.medicaid.gov/medicaid/data-systems/medicaid-information-technology-architecture/medicaid-information-technology-architecture-framework/index.html.

[12] Criminal Justice Information Services (CJIS) Security Policy. https://le.fbi.gov/cjis-division/cjis-security-policy-resource-center.

[13] Family Educational Rights and Privacy Act (FERPA). https://www2.ed.gov/policy/gen/guid/fpco/ferpa/index.html.

[14] Hawaii State DOT, Motor Vehicle Driver's License and related offices. https://hidot.hawaii.gov/highways/files/2018/02/Privacy_Policy_Stmnt_mvso-12-12-2017.pdf.

[15] Driver's Privacy Protection Act (DPPA) H.R.3365 — 103rd Congress (1993-1994). https://www.law.cornell.edu/uscode/text/18/2721.

[16] Critical Infrastructure Information, 6 USC CHAPTER 1, SUBCHAPTER XVIII, Part B https://www.cisa.gov/sites/default/files/publications/CII-Act.pdf.

[17] International Organization for Standardization (ISO) 27001: Information security management systems. https://www.iso.org/standard/27001: https://www.iso.org/standard/27001.